

_____ **Court of Washington, County/City of** _____

State of Washington _____,
Plaintiff
vs.

Defendant (First, Middle, Last Name) _____
SID: _____

Case Number _____
☐ Pre-Trial ☐ Post-Conviction
☐ Emergency DV

Domestic Violence No-Contact Order

(Clerk Code: clj = NOCON, Superior cts = ORNC, ORWPNP)

Clerk's action required: Sec. 10, 11

1. Protected Person's Identifiers:

Name (First, Middle, Last)

DOB Gender Race

Defendant's Identifiers:

Date of Birth	
Gender	Race

☐ This order protects the following victim's family and household members (*Names*):

If a minor, use initials instead of name, provide other info, and complete a Law Enforcement and Confidential Information (form PO 003).

2. Defendant:

- ☐ do not cause, attempt, or threaten to cause bodily injury to, assault, sexually assault, harass, stalk, or keep under surveillance the Protected Person.
- ☐ do not contact the Protected Person or the above listed family and household members directly, indirectly, in person, or through others, by phone, mail, or electronic means, except for mailing or service of process of court documents through a third party, or contact by the defendant's lawyers.
- ☐ do not knowingly enter, remain, or come within _____ (1,000 feet if no distance entered) of the Protected Person's residence, school, workplace, vehicle, other:

☐ immediately vacate the residence shared with the Protected Person.

☐ other: _____

3. Firearms, Weapons, and Concealed Pistol License; Defendant:

☐ do not, own, possess, or control a firearm. (RCW 9.41.040).

☐ do not access, have in your custody or control, obtain, purchase, receive, attempt to purchase or receive, or possess a firearm, other dangerous weapon, or concealed pistol license. (RCW 9.41.800).

☐ **immediately surrender** all firearms and other dangerous weapons within the defendant's possession or control and any concealed pistol license to (*local law enforcement agency*): _____

☐ comply with the **Order to Surrender and Prohibit Weapons** filed separately. (RCW 9.41.800).

☐ comply with the **Extreme Risk Protection Order** filed separately. (chapter 7.105 RCW).

☐ The court declines to impose restrictions because: _____

4. This No-Contact Order Expires On:

☐ (*Date and time*) _____

☐ 1 ☐ 2 ☐ 5 years from today's date.

The court may extend a no-contact order even if the defendant does not appear at arraignment.

This order replaces all prior no-contact orders protecting the same person issued under this cause number.

Warning: Violation of this order with actual notice of its terms is a criminal offense under chapter 7.105 RCW and will subject a violator to arrest; any assault, drive-by shooting, or reckless endangerment that is a violation of this order is a felony. **You can be arrested even if the person protected by this order invites or allows you to violate the order's prohibitions.** You have the sole responsibility to avoid or refrain from violating the order's provisions. Only the court can change the order upon written request.

5. Weapons Surrender Compliance:

The requirements of RCW 10.99.030 ☐ have ☐ have not been met including submission of the officer's sworn statement that documents the officer separated the parties at the scene and asked the victim about firearms, other dangerous weapons, ammunition the defendant has access to; and whether the defendant has a concealed pistol license.

The officer's sworn statement indicates that they ☐ have ☐ have not temporarily removed and secured all firearms, dangerous weapons, and any concealed pistol license.

6. The court finds that the defendant's relationship to the person protected by this order is as a/an:

- ☐ intimate partner because they are:
 - ☐ current or former spouses or domestic partners,
 - ☐ parents of a child-in-common,
 - ☐ age 13 or older and are/were in a dating relationship, and
 - ☐ live or have lived together
 - ☐ not lived together

☐ family or household member pursuant to RCW 7.105.010(14).

7. For crimes not defined as a serious offense, the court makes the following mandatory findings pursuant to RCW 9.41.800(1) and (2):

- ☐ The defendant used, displayed, or threatened to use a firearm or other dangerous weapon in a felony;
- ☐ The defendant is ineligible to possess a firearm pursuant to RCW 9.41.040;
- ☐ Possession of a firearm or other dangerous weapon by the defendant presents a serious and imminent threat to public health or safety, or to the health or safety of any individual;
- ☐ The defendant represents a credible threat to the physical safety of the Protected Person or this order explicitly prohibits the use, attempted use, or threatened use of physical force against the Protected Person, and the court issues this *No-Contact Order* to prevent possible recurrence of violence.

8. Emergency Order Only:

- ☐ The court finds probable cause to believe that the victim is in imminent danger of domestic violence based on the alleged recent act involving domestic violence. An emergency no-contact order may be extended pursuant to RCW 10.99.040(3).

If an Emergency Domestic Violence No-Contact Order, complete a Law Enforcement and Confidential Information (form PO 003).

9. Civil Standby:

- ☐ Not needed.
- ☐ The appropriate law enforcement agency shall, at a reasonable time and for a reasonable duration, assist the defendant in obtaining personal belongings located at:

Additional Warnings to Defendant: This order does not modify or terminate any order entered in any other case. You are still required to comply with other orders.

Pursuant to 18 U.S.C. § 2265, a court in any of the 50 states, the District of Columbia, Puerto Rico, any United States territory, and any tribal land within the United States, shall accord full faith and credit to the order.

10. Further Service:

- ☐ **Not needed.** Defendant was given a copy of this *Order* at the hearing.

☐ **Required.** Defendant must be served with a copy of this *Order*.

☐ **Clerk's Action.** The court clerk shall forward the *No-Contact Order* on or before the next judicial day to the following law enforcement agency where the Restrained Person lives or can be served (**check only one**):

☐ Sheriff's Office

☐ Police Department (*county or city*) _____

This agency shall serve the *No-Contact Order* and shall promptly complete and return proof of service to this court. (*Law enforcement must personally serve if firearms and concealed pistol license have not yet been surrendered. Electronic service is available if the court has verified firearms have been surrendered*).

☐ **Emergency Domestic Violence No-Contact Order.** The law enforcement agency that requested this order shall serve the *No-Contact Order* (or shall forward to the appropriate agency for service) and shall promptly complete and return proof of service to this court. (*Law enforcement must personally serve if firearms and concealed pistol license have not yet been surrendered. Electronic service is available if the court has verified firearms have been surrendered*).

11. Washington Crime Information Center (WACIC) and Other Data Entry:

Clerk's Action. The court clerk shall forward a copy of this order by the next judicial day to the following law enforcement agency (*county or city*) _____ (**check only one**): ☐ Sheriff's Office or ☐ Police Department

This agency shall enter this order into WACIC and National Crime Information Center (NCIC).

12. Firearm Restoration Notification from Prosecutor:

Notification order here does not impact law enforcement's obligation to notify under RCW 9.41.340.

Notice to Protected Person is:

☐ **Required.** The Protected Person has requested notification from the prosecutor if a petition for the restoration of firearms is filed and of the court's decision.

☐ **Not required.** The Protected Person has opted out of notification from the prosecutor if a petition for the restoration of firearms is filed and of the court's decision.

13. ☐ After Hours:

I am submitting this order to the court on (date) _____ and the judge signed this order on (date) _____. The clerk's office filing date may be different.

Dated: _____ Time: _____ a.m./p.m.

Judge/Pro Tem/Court Commissioner

I acknowledge receipt of a copy of this order:

Defendant

The Protected Person shall be provided with a certified copy of this order.

Protected Person. If you have requested notice about firearms, tell the prosecutor and law enforcement if your contact information changes.

I am a certified or registered interpreter, or have been found otherwise qualified by the court to interpret in the _____ language, which the defendant has indicated they understand. I have interpreted this document for the defendant from English into that language. I certify under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

Signed on (*date*) _____ at (*city*) _____, (*state*) _____

Interpreter: _____ Print name: _____